



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2404: authorized transporters

WILLOUGHBY FLOOR AMENDMENT

1. Prohibits, beginning December 31, 2026, notwithstanding any other law to the contrary, a peace officer from conducting a transport of a person from a hospital emergency department or a locked unit of a behavioral health facility to another health care institution, an evaluation agency or a mental health treatment agency, unless:
 - a. the person is incarcerated; or
 - b. a court, person, evaluation agency or mental health treatment agency has reasonable grounds to believe that the patient cannot be safely apprehended without the assistance of a peace officer.

WILLOUGHBY FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2404
(Reference to HEALTH & HUMAN SERVICES S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 36, chapter 5, article 1, Arizona Revised
4 Statutes, is amended by adding section 36-503.05, to read:

5 36-503.05. Mental health patients; proposed patients;
6 transportation; use of peace officers
7 prohibited; exceptions

8 A. BEGINNING [DECEMBER 31, 2026] [JULY 1, 2027], NOTWITHSTANDING
9 ANY OTHER LAW TO THE CONTRARY, ~~[INTER-FACILITY TRANSPORTS OF PROPOSED~~
10 ~~PATIENTS PURSUANT TO THIS CHAPTER SHALL BE CONDUCTED BY HEALTH CARE~~
11 ~~INSTITUTIONS, BEHAVIORAL HEALTH FACILITIES, INCLUDING SCREENING AGENCIES,~~
12 ~~EVALUATION AGENCIES AND MENTAL HEALTH TREATMENT AGENCIES, AND ANY OTHER~~
13 ~~AUTHORIZED TRANSPORTER.]~~ A PEACE OFFICER MAY NOT CONDUCT ~~[AN INTER-~~
14 ~~FACILITY]~~ [THE] TRANSPORT [UNLESS] [OF] A PERSON [FROM A HOSPITAL
15 EMERGENCY DEPARTMENT OR A LOCKED UNIT OF A BEHAVIORAL HEALTH FACILITY TO
16 ANOTHER HEALTH CARE INSTITUTION, AN EVALUATION AGENCY OR A MENTAL HEALTH
17 TREATMENT AGENCY, UNLESS ONE OF THE FOLLOWING APPLIES:

18 1. THE PERSON IS INCARCERATED.

19 2. A COURT, A PERSON, AN EVALUATION AGENCY OR A MENTAL HEALTH
20 TREATMENT AGENCY HAS REASONABLE GROUNDS TO BELIEVE THAT THE PATIENT OR
21 PROPOSED PATIENT CANNOT BE SAFELY APPREHENDED WITHOUT THE ASSISTANCE OF A
22 PEACE OFFICER.

23 3. ANY PERSON] REQUESTS A PEACE OFFICER BY DIALING 911 OR A SIMILAR
24 DESIGNATED TELEPHONE NUMBER FOR EMERGENCY CALLS AND NEEDS EMERGENCY
25 ASSISTANCE.

26 ~~[B. FOR THE PURPOSES OF THIS SECTION, "INTER-FACILITY TRANSPORT"~~
27 ~~MEANS THE TRANSPORTATION OF A PROPOSED PATIENT FROM ONE LICENSED HEALTH~~

1 ~~CARE INSTITUTION OR BEHAVIORAL HEALTH FACILITY TO ANOTHER LICENSED HEALTH~~
2 ~~CARE INSTITUTION OR BEHAVIORAL HEALTH FACILITY.]~~
3 [B. EXCEPT AS PROVIDED IN SUBSECTION A OF THIS SECTION, AN
4 AUTHORIZED TRANSPORTER SHALL CONDUCT ANY APPREHENSION AND TRANSPORT OF A
5 PATIENT OR PROPOSED PATIENT.]"

6 Enroll and engross to conform

7 Amend title to conform

JULIE WILLOUGHBY

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C: MH

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